Other Issues

The motion repeatedly represents that that the class includes all persons employed through the date of final approval. The scope of the class is defined by the 2AC. New claims accruing after the filing of the 2AC cannot be included in this motion and are not before the court. Nor could new claims or new employees be added after Preliminary Approval that were not employed during the specific time period at issue.

The court understands that moving parties anticipate final approval hearing to occur 370 days after preliminary approval. The court reserves **September 30, 2027 at 9:00 a.m. for hearing on the Motion for Final Approval.**

RUSCHELL CALDWELL v. HYUNDAI MOTOR AMERICA
Case No. CU25-00008

HYUNDAI's Motion to Compel Arbitration

TENTATIVE RULING

Defendant HYUNDAI MOTOR AMERICA ("HYUNDAI") moves to compel arbitration of Plaintiff RUSCHELL CALDWELL's claims for violation of the Song-Beverly Consumer Warranty Act pertaining to his 2022 Genesis GV70 (the "Vehicle"). HYUNDAI states that the Vehicle's owner's handbook contains an arbitration clause, as does the service agreement for the Genesis Connected Services ("GCS") service package in which it says Plaintiff enrolled the Vehicle.

Defendant's motion to compel arbitration is DENIED.

Legal Standard. A party to an arbitration agreement may petition the court to compel arbitration if it alleges the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate. (Code Civ. Proc., § 1281.2.) In ruling on a petition to compel arbitration, the trial court shall order parties to arbitrate if it determines that a valid agreement to arbitrate the controversy exists and the dispute between the parties falls within the scope of the agreement. (*Luxor Cabs, Inc. v. Applied Underwriters Captive Risk Assurance Co.* (2018) 30 Cal.App.5th 970, 977 (*Luxor Cabs*).) Arbitration should be compelled unless it can be said with assurance that the arbitration clause in question is not susceptible to an interpretation covering the asserted dispute. (*EFund Capital Partners v. Pless* (2007) 150 Cal.App.4th 1311, 1320-1321.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence, and the party opposing arbitration bears the burden of proving by a preponderance of the evidence any defense. (*Ibid*.)

Existence of Agreement to Arbitrate; Equitable Estoppel.

A party seeking to compel arbitration “bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence.” (*Engalls v. Permanente Medical Group, Inc*. (1997) 15 Cal. 4th 951, 972.) Here, HYUNDAI fails to meet that burden.

To the extent that HYUNDAI relies on an arbitration provision contained in the Vehicle’s Owner’s Handbook & Warranty Information, HYUNDAI has failed to establish mutual assent or that enforcing an arbitration agreement presented in this manner is not procedurally unconscionable. HYUNDAI does not establish that Plaintiff ever assented to the arbitration provision contained in the handbook, either by signature or by conduct. HYUNDAI contends that Plaintiff accepted the handbook by using the Vehicle or by accepting the benefits under the warranty. HYUNDAI, however, submitted no evidence indicating that Plaintiff was ever provided with the handbook or that he was ever informed of the arbitration provision in the handbook. Plaintiff’s alleged conduct in receiving an Owner’s Manual with the Vehicle does not manifest consent to arbitration.

To form a contract under California law there must be mutual assent. In order to establish mutual assent there must be actual or constructive notice of the terms of agreement. An arbitration term hidden in a 45-page Owner’s Handbook does not establish mutual assent, especially in the circumstance that a purchaser executes a sales contract. Even if an argument for mutual assent could be made based on conduct, enforcing such a term in the manner it was presented would be so procedurally unconscionable as to render the term unenforceable.

The court finds that HYUNDAI has also not proven that the purported GCS service agreement arbitration clause applies. HYUNDAI’s witness declares that Plaintiff enrolled in GCS services on August 8, 2021 and therefore must have agreed to the GCS services arbitration clause. (Declaration of Vijay Rao in Support of Motion at ¶¶ 4-6.) However, HYUNDAI again lacks specific evidence that Plaintiff was in fact presented with the GCS services arbitration clause, was advised of it, or agreed to it. Plaintiff’s concerns about the Vehicle do not appear to be related to any of the GCS services. Even if HYUNDAI’s argument that the conduct associated with activating the GCS services shows acceptance, enforcing the arbitration clause be applying it to the entire vehicle would be procedurally and substantively unconscionable so as to render the term unenforceable.

Plaintiff is not estopped from denying application of either arbitration agreement. In determining whether equitable estoppel prevents a party from denying application of an arbitration agreement “the essential concern is whether plaintiffs are trying to enforce contractual terms beneficial to them while avoiding their own contractual agreement to arbitrate.” (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1136.) However, just as in *Ford Motor Warranty Cases*, the potential liability on warranties HYUNDAI faces here derives from statute, not any contracts between the parties. (*Id*. at p. 1136.)

Conclusion. HYUNDAI's motion to compel arbitration is denied.

MIGUEL ANGEL SANDOVAL FLORES et al. v. INTEGRITY MOVING SOLUTIONS, INC., et al. CU25-09834

Defendants' Motion for Dismissal

<u>TENTATIVE RULING:</u>

It is unclear to the court why plaintiff's counsel and defense counsel did not meet and confer and why this motion was not vacated by defense counsel. Unfortunately, unnecessary motions like these too often clog court calendars creating unnecessary backlogs and wasting resources.

William Richard LaVigne filed this motion to dismiss on behalf of Defendant INTEGRITY MOVING SOLUTIONS, INC. and on behalf of himself on May 26, 2026. Subsequently, an answer was filed by defense counsel on behalf of both defendants on August 5, 2026.

A pro per may not represent a corporation. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.) By doing so, LaVigne engaged in the unlicensed practice of law.

The 7 month delay in serving the complaint is not a basis for dismissal of the action.

The court notes that opposition to the motion was served after an answer had been filed with legal counsel noted on the caption. The opposition was served solely on LaVigne and not on defense counsel. It is unclear to the court why plaintiff's counsel failed to serve the opposition to newly appearing counsel of record.

Defense counsel shall file a substitution of counsel for LaVigne individually forthwith. As LaVigne is not legally permitted to represent a corporation, his "appearance" by filing a motion to dismiss is disallowed.

The motion to dismiss is DENIED.

BEATTIE v. COUNTY OF SOLANO, et al.
Case No. CU26-03723

Motion to Strike Portions of Complaint

<u>TENTATIVE RULING</u>

For injuries caused by a dangerous condition of public property, the only potential basis for liability against the public entity owning or controlling that property is Government Code §§630 and 635. Government Code §840 provides: